(2)

Supreme Court, U.S.
FILED
OCT 1 1997
CLERK

No. 97-475

In The

Supreme Court of the United States

October Term, 1996

EL AL ISRAEL AIRLINES, LTD.,

Petitioner,

vs.

TSUI YUAN TSENG,

Respondent.

On Petition for a Writ of Certiorari to the United States Court of Appeals for the Second Circuit

RESPONDENT'S BRIEF IN OPPOSITION

ROBERT H. SILK
Counsel of Record
SILK, BUNKS & SUCKLE, P.C.
Attorneys for Respondent
401 Broadway
New York, New York 10013-3005
(212) 966-1545

RECEIVED
OCT 2 1997
OFFICE OF THE CLERK
SUPREME COURT, U.S.

25 pp

COUNTER-STATEMENT OF QUESTIONS PRESENTED FOR REVIEW

1. Whether an airline's Warsaw Convention Article 17 exposure to liability for accidental injuries implicitly renders it immune to suit for egregious willful tort.

2. Whether the district court's disposition of the baggage claim properly complied with the requirements of Article 26 of the Convention.

TABLE OF CONTENTS

Page

Counter-Statement of Questions Presented for Review i

Table of Contents ii

Table of Citations iii

Counter-Statement of the Case 1

A. Nature Of The Case 2

Reasons for Denying the Writ 3

I. Petitioner's Main Objection To The Ruling Of The Second Circuit Is That It Refused To Give An Absurd And Irrational Construction To The Warsaw Convention. 3

II. The Supposed Need For "Uniformity" In Construing The Convention For Choice Of Law Purposes Has Been Rejected By This Court. .. 5

III. Petitioner Seeks To Read Into The Warsaw Convention Contrary To The Governing Law An Unexpressed Preemption Of The Foreign Sovereign Immunity Act Which Mandates The Applicable Choice Of Law Rule In This Case To Be That Of New York. 9

Contents

Page

IV. Contrary To The Governing Law Petitioner Would Read Into In The Convention A Ban On Recourse To State Law For Non-accidental Willfully Inflicted Tortious Injuries That Was Not Included In It By The Signatories. 12

V. Preemption Of The States' Common Law Of Personal Injury Torts Is Disfavored And There Is Presumption Against It. 15

VI. Petitioner, Resting On *Potter* And *Abnett*, Asks No Less Than That The Court, Without Any Compelling Reason, Revisit, Overrule Or Emasculate At Least Seven Its Cases. 17

VII. The Baggage Claim 18

Conclusion 18

TABLE OF CITATIONS

Cases Cited:

Abnett v. British Airways PLC, 1 All. E.R. 193 (H.L. 12 December, 1996) 5, 9, 14

Air France v. Saks, 470 U.S. 392 (1985) 4

Argentine Republic v. Amerada Hess Shipping Corp., 488 U.S. 428 (1989) 11, 12, 13, 17

Citations

	Page
Brink's Limited v. South African Airways, 93 F.3d 1022 (8/8/96)	9
Broughton v. State of New York, 37 N.Y. 2d 451, 373 N.Y.S. 2d 87 (1975), *cert. denied*, 96 S. Ct. 277 (1962)	4
Budgar v. State of New York, 98 Misc. 2d 588, 414 N.Y.S. 2d 463 (1979)	4
Eastern Airlines v. Floyd, 499 U.S. 530 (1991)	4
First National City Bank v. Banco Para El Comercio Exterior de Cuba, 462 U.S. 611 (1983)	10, 11, 12, 17
Jones v. State of New York, 33 N.Y. 2d 275, 352 N.Y.S. 2d 169 (1973)	4
Jones v. State of New York, 96 A.D. 2d 105, 468 N.Y.S. 2d 223 (1983)	4
Krys v. Lufthansa German Airlines, 119 F.3d 1515 (8/25/97)	9
Laurie Marie M. v. Jeffrey T.M., 159 A.D. 2d 52, 559 N.Y.S. 2d 336 (1990)	4
Maines v. Cronomer Val. Fire Dept., 50 N.Y. 2d 535, 429 N.Y.S. 2d 622 (1980)	4
Medtronic, Inc. v. Lohr, 116 S. Ct. 2240	15, 17

Citations

	Page
New York State Conference of Blue Cross & Blue Shield Plans v. Travelers Insurance Company, 514 U.S. 645	16, 17, 18
Noschese v. City of New York, 53 A.D. 2d 566, 384 N.Y.S. 2d 822 (1976)	4
Oates v. New York Hospital, 131 A.D. 2d 368, 517 N.Y.S. 2d 6 (1987)	4
People v. Cameron, 48 A.D. 2d 783, 369 N.Y.S. 2d 418 (1975)	3
Pescatore v. Pan American World Airways, Inc., 97 F.3d 1 (9/9/96)	9
Potter v. Delta Airlines, 98 F.3d 881	8, 10, 11, 14, 17
Saavedra v. Korean Air Lines, 93 F.3d 547 (9th Cir. 1996), *cert. denied*, 117 S. Ct. 584	8
Schloendorff v. The Society of the New York Hospital (*per* Cardozo, J.), 211 N.Y. 125, 105 N.E. 92 (1914)	4
Silkwood v. Kerr-McGee Corp. 464 U.S. 238 (1984)	13, 17
Staudacher v. City of Buffalo, 155 A.D. 2d 956, 547 N.Y.S. 2d 770 (1989)	4
United States v. One Parcel of Real Estate, 41 F.3d 1448 (11th Cir. 1995)	4

Citations

	Page
United States v. X-Citement Video, Inc., 513 U.S. 64 (1994)	4, 17
Villanueva v. Comparetto, 180 A.D. 2d 627, 580 N.Y.S. 2d 30 (1992)	4
Zicherman v. Korean Air Lines Co., Ltd., __ U.S. __, 116 S. Ct. 629 (16 January, 1996)	5, 7, 8, 10, 11, 12, 14, 17
Statute Cited:	
28 U.S.C. § 1602, *et seq.*	10
28 U.S.C. § 1606	10, 15
Other Authorities Cited:	
Warsaw Convention Article 17	i, 5, 13
Warsaw Convention Article 24(1)	8
Warsaw Convention Article 24(2)	8, 12
Warsaw Convention Article 26	i

COUNTER-STATEMENT OF THE CASE

Petitioner bases its request for *certiorari* on legalisms divorced from the case itself. It "States the Case" without stating what it is about. The result is it seeks review to obtain an advisory opinion on the Warsaw Convention unrelated to the facts proved at trial. The petition's Statement of the Case describes them in a few threadbare words under the Statement's subheading, "Nature of the Case":

> Plaintiff was escorted into a private EL AL security room where her baggage and person were searched. EL AL was searching for "[e]xplosives in any size, detonators ... from small, like the cap of the pen, and ... up from that." Defendant did not, at any time, use force to question or search plaintiff and plaintiff did not, at any time, object to the search.

If that was all there was to it, there would have been no case to start with. Wholly omitted by Petitioner is its willful humiliating violation of Respondent's body and liberty, amounting to assault and battery and false imprisonment in New York State where the cause arose, all proved and deemed true when considering the dismissal which the Second Circuit reversed and petitioner now asks the Court to review. Simply seeking to visit Israel on a vacation, she was handled like an imprisoned criminal without rights before being permitted to board her flight.

At bottom, petitioner seeks review of its claim that the Warsaw Convention be construed to immunize airlines from liability for injuries due to their willful misconduct while allowing passenger suits against them if injury is caused by accident.

A more truly stated "Nature of the Case", referring to the trial record which portrays it more accurately, follows:

A. Nature Of The Case

Respondent, a New York citizen, was a clinical nutritionist employed by Beth Israel North Medical Center for 22 years (A51-2).* She had booked passage on El Al flight 008, New York to Tel Aviv, departing JFK International Airport May 22nd, 1993, where Defendant maintained and operated terminal facilities for departing passengers (A19-20).

On the scheduled date, plaintiff appeared at Petitioner's facilities for the flight. (A20) She presented her ticket and American passport (A21, 54-55), was interviewed and taken by a man in uniform into a small room, and the door closed (A55-58). She was confined there for over an hour (A63).

Imprisonment was conceded with binding force. El Al's proposed Finding #3 (A25):

> Plaintiff was not free to leave the area where she was interviewed unless she declined to board EL AL flight 008.

She was never given the option. She was kept confined, made to loosen and lower her blue jeans some four inches to mid-hip level (A59-60) and be searched by a uniformed female El Al employee. All parts of her body, from head to toe including her "private parts", were manually palpated in such a manner in the small closed room that she felt she was being raped. (A61). She was not given a choice to forfeit the flight and leave.

---

* "A" references are to Court of Appeals Appendix.

The feeling of her body took some ten to fifteen minutes (A61-62). The search included the touching and squeezing of her breasts (A86) and hands-on palpation of her body included the portions of her body between her legs, including her vagina (A87).

Petitioner's characterization of Respondent's response to this treatment in its "Nature of the Case" as not "object[ing] to the search" should not connote that she consented to it. The record shows she was helplessly overawed by Petitioner's uniformed security personnel's display of authority and the traumatized Respondent perforce bowed to it.

> I was just like locked up in this little room with all the police [sic] there.

(A61).

REASONS FOR DENYING THE WRIT

I.

PETITIONER'S MAIN OBJECTION TO THE RULING OF THE SECOND CIRCUIT IS THAT IT REFUSED TO GIVE AN ABSURD AND IRRATIONAL CONSTRUCTION TO THE WARSAW CONVENTION.

A consent to search is not deemed voluntary in New York when one bows to a display of authority. *People v. Cameron*, 48 A.D. 2d 783, 369 N.Y.S. 2d 418 (1975). This is no consent at all. But horrifying as the experience was to plaintiff, its conduct was not "accidental" but standard for El Al (A113, 118).

Under New York and generally accepted common law principles, Petitioner's conduct amounted to intentional assault

and battery and false imprisonment.[1] Petitioner asks the Convention that allows airline exposure to liability for accidental injuries be implied to give it immunity in this case.

Below Petitioner had argued the treatment accorded Respondent was accidental and within the limitation to accidental "bodily injury" of Article 17, which excludes traumatic stress or psychic injury as compensible (*Eastern Airlines v. Floyd*, 499 U.S. 530). Now Petitioner concedes it was not "accidental" under Article 17 of the Warsaw Convention, as the Second Circuit ruled following *Air France v. Saks*, 470 U.S. 392, 397 (Petition Appendix, 11a-14a). On a new tack, it urges that since it was not accidental, the very egregiousness of its tort benefits and shields it from liability.

This hoped-for construction of the treaty is preposterous. It is at odds with the teaching of this Court and others to avoid absurd irrational statutory constructions. *United States v. X-Citement Video, Inc.*, 513 U.S. 64, 69 (1994); *United States v. One Parcel of Real Estate*, 41 F.3d 1448, 1452 (11th Cir. 1995). Petitioner's proposed construction is one of them. The Second Circuit noted the absurdity.

> Such a reading would lead to the absurd

---

1. *Maines v. Cronomer Val. Fire Dept.*, 50 N.Y. 2d 535, 545-6, 429 N.Y.S. 2d 622 (1980); *Broughton v. State of New York*, 37 N.Y. 2d 451, 458, 373 N.Y.S. 2d 87 (1975), *cert. denied*, 96 S. Ct. 277; *Jones v. State of New York*, 33 N.Y. 2d 275, 352 N.Y.S. 2d 169 (1973); *Schloendorff v. The Society of the New York Hospital* (*per* Cardozo, J.), 211 N.Y. 125, 105 N.E. 92 (1914); *Villanueva v. Comparetto*, 180 A.D. 2d 627, 580 N.Y.S. 2d 30 (1992); *Laurie Marie M. v. Jeffrey T.M.*, 159 A.D. 2d 52, 559 N.Y.S. 2d 336 (1990); *Staudacher v. City of Buffalo*, 155 A.D. 2d 956, 547 N.Y.S. 2d 770 (1989); *Oates v. New York Hospital*, 131 A.D. 2d 368, 370, 517 N.Y.S. 2d 6 (1987); *Jones v. State of New York*, 96 A.D. 2d 105, 468 N.Y.S. 2d 223 (1983); *Noschese v. City of New York*, 53 A.D. 2d 566, 384 N.Y.S. 2d 822 (1976); *Budgar v. State of New York*, 98 Misc. 2d 588, 414 N.Y.S. 2d 463 (1979).

> result of allowing carriers to escape liability for their negligence — or even their intentional torts — so long as the event giving rise to the injury was not an accident.

Tseng, Pet. p. 20a.

II.

THE SUPPOSED NEED FOR "UNIFORMITY" IN CONSTRUING THE CONVENTION FOR CHOICE OF LAW PURPOSES HAS BEEN REJECTED BY THIS COURT.

The judgment of the House of Lords in *Abnett v. British Airways PLC*, 1 All. E.R. 193 (H.L. 12 December, 1996) lends no support to El Al's contention that the Warsaw Convention renders it immune to common law claims for willful wrongdoing. Intentional tort was not involved in *Abnett*. Negligence and breach of implied contract of reasonable care were. The opinion by Lord Hope of Craighead related to common law passenger claims for damages due to a flight delay in Kuwait allowing the passenger to be taken prisoner by the invading Iraqis. Article 17 did not apply. In context of the non-willful wrongdoing case before the Lords, Lord Hope ruled that Article 17 nonetheless was the exclusive remedy for passengers. He rested on a felt need for uniformity in construing the Convention.

While avowing a pursuit of uniformity, Lord Hope omitted to note this Court's landmark *Zicherman v. Korean Air Lines Co., Ltd.*, __ U.S. __ , 116 S. Ct. 629, 636 (16 January, 1996), which came down almost a year earlier and flatly rejected uniformity as a guiding principle in Convention construction.

The most natural reading of this Article is

that, in an action brought under Article 17, the law of the Convention does not affect the substantive questions of who may bring suit and what they may be compensated for.

Congress may choose to enact special provisions applicable to Warsaw Convention cases, as some countries have done. See *supra*, at 635. Absent such legislation, however, Articles 17 and 24(2) provide nothing more than a pass-through, authorizing us to apply the law that would govern in the absence of the Warsaw Convention. There is little doubt what that law is in this case.

* * *

The Convention neither adopted any uniform rule of its own nor authorized national courts to pursue uniformity in derogation of otherwise applicable law. Petitioners argue, in effect, that the Convention contains an implicit authorization for national courts to create uniformity between over-land and over-sea accidents governed by their respective domestic laws, even though it leaves the vast discrepancies among the various domestic laws untouched. That is most unlikely.

* * *

We conclude that Articles 17 and 24(2) of the Warsaw Convention permit compensation only for legally cognizable harm, but leave

> the specification of what harm is legally cognizable to the domestic law applicable under the forum's choice-of-law rules.

116 S. Ct., 634, 636.

The Second Circuit below (Pet. p. 21a) followed *Zicherman's* guidance and pointed to the flaw in the Fifth Circuit's approach:

> The second argument advanced in support of holding the Convention wholly exclusive is that permitting state law claims under any circumstances contravenes the Convention's goal of uniformity. *See Potter,* 98 F.3d at 885. This argument is flawed in two respects. First, while uniformity is certainly one of the two primary goals of the Convention, such a goal has not always been found feasible in all areas if international travel. Second, even where possible, uniformity cannot justify altering the operating structure of the Convention. *See Zicherman,* 116 S. Ct. at 636 * * * We have read *Zicherman* to instruct specifically that the Convention expresses no compelling interest in uniformity that would warrant us in supplanting an otherwise applicable body of law, here state law. * * * Even to accept the argument that uniformity should prevail where the Convention does not apply does not support the ultimate proposition that the Convention must therefore supply the exclusive remedy, because uniformity could be achieved equally as well by allowing recovery outside

> the Convention, under a uniform body of law. Of course, once the Convention is ruled inapplicable the carrier may, in a liability suit against it under domestic law, interpose all the defenses available to it under that law.

Treating the Fifth Circuit's palpably erroneous view in *Potter* as posing a serious conflict with the Second Circuit in *Tseng* misses the point: the Fifth Circuit's serious conflict is with this Court's *Zicherman*, which *Tseng* faithfully follows. This is no basis for granting *certiorari* for review of the Second Circuit *Tseng* decision.

In *Zicherman v. Korean Air Lines Co.*, 116 S. Ct. 629, referring to Article 24(2).[2] the Court held (116 S. Ct., 634):

> The most natural reading of this Article is that, in an action brought under Article 17, the law of the Convention does not affect the substantive questions of who may bring suit and what they may be compensated for.

Saavedra v. Korean Air Lines, 93 F.3d 547, 551 (9th Cir. 1996), *cert. denied*, 117 S. Ct. 584:

> [The *Zicherman*] Court rejected the district Court's theory that damages are recoverable

---

2. Article 24(1) "In the cases covered by Articles 18 and 19 any actions for damages, however founded, can only be brought subject to the conditions and limits set out in this convention".

Article 24(2) "In the cases covered by Article 17 the provisions of the preceding paragraph shall also apply, without prejudice to the questions as to who are the persons who have the right to bring suit and what are their respective rights".

> directly under the Warsaw Convention. The Court explained that "damage" in Article 17 refers to "legally cognizable harm," and that adjudicating courts are to determine what harm is legally cognizable only by referring to domestic law. 116 S. Ct. at 634.

Zicherman v. Korean Airlines Co., 116 S. Ct. 629, faithfully followed by the Second Circuit in *Brink's Limited v. South African Airways*, 93 F.3d 1022 (8/8/96), and *Pescatore v. Pan American World Airways, Inc.*, 97 F.3d 1 (9/9/96), joined by the Eleventh Circuit more recently in *Krys v. Lufthansa German Airlines*, 119 F.3d 1515 (8/25/97), underlies the holding in *Tseng* that "uniformity" is no talismanic key for construing the Convention. Indeed, the Supreme Court in *Zicherman* expressly disapproved a Second Circuit holding under review which had made a felt need for uniformity a key to Convention-asserted rights.

Petitioner's misplaced reliance upon *Abnett* to stress the need for uniformity in construing rights of international air travelers is utterly undermined by *Zicherman.*

III.

PETITIONER SEEKS TO READ INTO THE WARSAW CONVENTION CONTRARY TO THE GOVERNING LAW AN UNEXPRESSED PREEMPTION OF THE FOREIGN SOVEREIGN IMMUNITY ACT WHICH MANDATES THE APPLICABLE CHOICE OF LAW RULE IN THIS CASE TO BE THAT OF NEW YORK.

The events in *Zicherman* occurred over the high seas. Domestic choice of laws rules made Death on the High Seas Act (DOHSA) applicable. In the present case involving an "over-land" occurrence in New York, under *Zicherman* principles the

domestic choice-of-law rules under the Foreign Sovereign Immunities Act, specifically 28 U.S.C. § 1606, make New York tort law applicable on the nature of the harm which is legally cognizable. As provided by Section 1606, under circumstances in which it is not entitled to immunity (as here), a

> foreign state shall be liable in the same manner and to the same extent as a private individual under like circumstances.

Petitioner as a foreign state within the FSIA (28 U.S.C. § 1602, *et seq.*), which availed itself of FSIA in removing the case from state to federal court, is subject to the provisions of § 1606 which make New York law applicable to this New York tort.[3]

As was noted in *Zicherman*, (116 S. Ct., 636)

> Congress may choose to enact special provisions applicable to Warsaw-Convention cases, as some countries have done.

But Congress has not chosen. Neither in FSIA or elsewhere did it choose to enact a special provision excluding airlines owned by foreign states in "international transportation" from state law liability that they would otherwise incur under 28 U.S.C. § 1606 as private individuals "under like circumstances."

For its part, the Convention does not expressly preempt all personal injury law governing passenger suits against airlines. The same Fifth Circuit *Potter v. Delta Airlines*, 98 F.3d 881,

---

3. *See First National City Bank v. Banco Para El Comercio Exterior de Cuba*, 462 U.S. 611. The issue had been raised by Respondent below but was not dealt with by Judge Cardamone in his opinion which reversed the District Court for other reasons.

885, upon which petitioner relies for the repudiated principle of uniformity, noted this, stating it was precisely

> Because the Convention has not expressed the preempted state law, [that *Potter* examined] the test for non-expressed preemption.

Non-expressed preemption of our domestic law by treaties is not allowed. Absent any provision in an international convention which "expressly conflict[s]" with, or preempts, the provisions of the FSIA — and there is none in the Warsaw Convention — the Foreign Sovereign Immunities Act controls. *Argentine Republic v. Amerada Hess Shipping Corp.*, 488 U.S. 428, 441-442.

In the light of *Zicherman*, the Court's holding in *First National City Bank v. Banco Para El Comercio Exterior de Cuba*, 462 U.S. 611, that FSIA mandates application of local state liability rules to it is forcefully brought to bear in this context.

462 U.S. at 622, n.11:

> . . . where state law provides a rule of liability governing private individuals, the FSIA requires the application of that rule to foreign states in like circumstances.

IV.

CONTRARY TO THE GOVERNING LAW PETITIONER WOULD READ INTO IN THE CONVENTION A BAN ON RECOURSE TO STATE LAW FOR NON-ACCIDENTAL WILLFULLY INFLICTED TORTIOUS INJURIES THAT WAS NOT INCLUDED IN IT BY THE SIGNATORIES.

The petition states as the prime "Question Presented for Review":

> (1) Whether the Warsaw Convention, a treaty of the United States, exclusively governs and precludes any recovery for a passenger's injuries sustained in the course of "international transportation" if the injuries were not caused by an "accident" within the meaning of Article 17 of the Convention?

The short answer to that question is no. The Convention does not state that it exclusively governs and precludes non-accidentally caused (or willful tort caused) injury recoveries, and so it does not under *Zicherman*, *Amerada Hess*, *Banco Para El Comercio* and the FSIA. Petitioner offers no compelling reason why the case at bar should present the occasion to re-review this settled law.

The only reference in the Convention to exclusivity appears in Article 24(2). This provides that in

> the cases covered by article 17 ["an action for damages, however founded, can only be brought subject to the conditions and limits set out in this convention"] without prejudice

> to the questions as to who are the persons who have the right to bring suit and what are their respective rights.

The Second Circuit *Tseng* court rightly noted (Pet. p. 15a):

> The provision clearly states that resort to local law is precluded only where the incident is "covered" by Article 17 meaning where there has been an accident * * * , *see Floyd*, 488 U.S. at 535-36. To extend the scope of the Convention's exclusivity beyond that would require rewriting Article 24 or Article 17, a task only the signatories to the Convention may undertake.

It is beyond cavil that the incident herein was not an accident and not covered by Article 17.

Petitioner's statement (Petition, p. 9) that "a right of recourse under state law should not be read into Article 17" stands the question on its head. Petitioner itself does the reading in. It reads into it a denial of that right. More truly put, a ban on recourse to state law for non-accidental tortiously inflicted injuries not expressed in the Convention should not be read into it. *Silkwood v. Kerr-McGee Corp.* 464 U.S. 238, 251 (1984):

> It is difficult to believe that Congress would, without comment, remove all means of recourse for those injured by illegal conduct.

The Convention became a United States treaty by Senate ratification. *Also note Argentine Republic v. Amerada Hess Shipping Corp.*, 488 U.S. 428, *supra.*

Potter v. Delta Airlines, 98 F.3d 881, no more involved a willful tort by an airline (or the effect of the FSIA) than did *Abnett*. A passenger returning to her seat on a privately owned aircraft caught her foot in a carpet in the aisle as she sought to enter the row and sit down, twisting her knee. The court held the circumstances of the case did not fit into the definition of "accident" established in *Air France v. Saks*, 470 U.S. 392, 397. The Fifth Circuit's broadly stated holding that non-accidental injury recoveries against airlines are barred is posited throughout upon the dubious (per *Zicherman*) conclusion that interpretation of the Warsaw Convention is bound by a requirement of uniformity.

The Second Circuit's *Tseng*, now at bar, carefully reviewed the history and language of the Warsaw Convention, and properly concluded that the reading sought by petitioner was unfounded:

> Given the self-described limitation of the Convention, it seems illogical to extend its scope beyond that for which it explicitly provides. It is not tenable to believe the Convention meant to address the more ordinary type of personal injury without some express statement in the text to that effect. Such a reading would lead to the absurd result of allowing carriers to escape liability for their negligence — or even their intentional torts so long as the event giving rise to the injury was not an accident occurring on an airplane or in the course of embarking or disembarking as narrowly circumscribed by the definition of Article 17's meaning.

Pet. App. p. 20a.

V.

PREEMPTION OF THE STATES' COMMON LAW OF PERSONAL INJURY TORTS IS DISFAVORED AND THERE IS PRESUMPTION AGAINST IT.

Were there no FSIA or Section 1606, there remains a strong principled presumption against pre-emption of state common law in the area of personal injury torts. Though there are none here, even legislatively expressed pre-emptive clauses are presumed inapplicable.

Medtronic, Inc. v. Lohr, 116 S. Ct. 2240, dealt with an argued preemption of state common law personal injury claims by a federal statute. Unlike the Convention here, that statute did contain specific preemptive language. The Court noted:

> Throughout our history the several states have exercised their police powers to protect the health and safety of their citizens. Because these are "primarily and historically, . . . matters of local concern," [. . .] the "States traditionally have had great latitude under their police powers to legislate as to the protection of the lives, limbs, health, comfort, and quiet of all persons." [. . .] * * *
>
> As in Cipollone v. Liggett Group, Inc., 505 U.S. 504 [. . .], we are presented with the task of interpreting a statutory provision that expressly pre-empts state law. * * *
>
> * * * because the States are independent sovereigns in our federal system, we have long presumed that Congress does not

> cavalierly pre-empt state-law causes of action. In all pre-emption cases, and particularly in those in which Congress has "legislated . . . in a field which the States have traditionally occupied," [. . .] we "start with the assumption that the historic police powers of the States were not to be superseded by the Federal Act unless that was the clear and manifest purpose of Congress." * * * we used a "presumption against the pre-emption of state police power regulations" to support a narrow interpretation of such an express command in Cipollone [. . .]. That approach is consistent with both federalism concerns and the historic primacy of state regulation of matters of health and safety. * * * It is, to say the least, "difficult to believe that Congress would, without comment, remove all means of judicial recourse for those injured by illegal conduct." Silkwood v. Kerr-McGee Corp, 464 U.S. 238, 251 [. . .] (1984).

In *New York State Conference of Blue Cross & Blue Shield Plans v. Travelers Insurance Company*, 514 U.S. 645, the Court held that it

> never assumed lightly that Congress has derogated state regulation, but instead have addressed claims of pre-emption with the starting presumption that Congress does not intend to supplant state law * * * and [the Court has] worked on the "assumption that the historic police powers of the States were not to be superseded by the Federal Act

> unless that was the clear and manifest purpose of Congress.

(514 U.S., 654)

VI.

PETITIONER, RESTING ON *POTTER* AND *ABNETT*, ASKS NO LESS THAN THAT THE COURT, WITHOUT ANY COMPELLING REASON, REVISIT, OVERRULE OR EMASCULATE AT LEAST SEVEN ITS CASES.

Zicherman v. Korean Airlines Co., which it had just decided last year and have the Court consider a 180° reversal and "pursue uniformity in derogation of otherwise applicable law" in construing the Warsaw Convention, which it unanimously had just announced it would not do;

Argentine Republic v. Amerada Hess Shipping Corp., denying treaty preemption to anything less that expressed conflict with domestic law, and no such conflict with FSIA and state law was expressed here;

First National City Bank v. Banco Para El Comercio Exterior de Cuba, holding that the FSIA mandates application of local state liability rules;

Silkwood v. Kerr-McGee Corp., denying implied deprivation of rights for losses due to illegal conduct;

Medtronic, Inc. v. Lohr, holding that the historic police powers of the States were not to be superseded absent an express command;

United States v. X-Citement Video, Inc., holding that absurd statutory constructions are to be avoided;

New York State Conference of Blue Cross & Blue Shield Plans v. Travelers Insurance Company, applying a presumption against pre-emption of state law.

VII.

THE BAGGAGE CLAIM

The Second Circuit correctly found petitioner's challenge to the district court's disposition of the baggage claim to be without merit, and the same should not be allowed frivolously to burden the Court with further review.

CONCLUSION

For the reasons stated above, the petition for certiorari should be denied.

Respectfully submitted,

ROBERT H. SILK
Counsel of Record
SILK, BUNKS & SUCKLE, P.C.
Attorneys for Respondent
401 Broadway
New York, New York 10013-3005
(212) 966-1545